

## 25CHCV02249 25CHCV02249

County: los-angeles

Division: Civil Law and Motion

Department: F43

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Case Number: 25CHCV02249 Hearing Date: September 16, 2026 Dept: F43

Dept. F43

Hearing Date: 09-16-26

Case # 25CHCV02249, Miller v. DM

Riviera, LLC, et al.

Trial Date: 11-27-28

MOTION TO COMPEL

RESPONSES TO REQUESTS FOR PRODUCTION

MOVING PARTY:

Plaintiff Gussie Miller

RESPONDING PARTY: No opposition was filed.

RELIEF REQUESTED

Order compelling defendants Michael Deutsch and Frank Galluci to serve objection-free responses to plaintiff's first set of requests for production and imposing \$750 in monetary sanctions against defendants Deutsch and Galluci and their counsel of record.

RULING: Motion is denied without prejudice.

SUMMARY OF ACTION

On June 26, 2025, plaintiff Gussie Miller (Plaintiff) filed this action against defendants DM Riviera, LLC, Michale Deutsch, Hammond and Hammond, Inc., and Frank Galluci, concerning issues at property he rented from defendants Hammond and Hammond, Inc. and DM Riviera, LLC. The complaint pleads breach of contract; breach of the warranty of habitability; breach of the covenant of quiet enjoyment; negligence; tenant harassment violations of L.A.M.C. § 45.33(1)-(16) and Civ. Code, §§ 1940.2, 1942.5; violation of Bus. & Prof. Code, § 17200, et seq.; intentional infliction of emotional distress; and uncured building inspection violations (Civ. Code, § 1942.4).

On January 23, 2026, Plaintiff served his first set of requests for production on defendants Michael Deutsch and Frank Galluci.[1] (Declaration of Eric Jon Bravo ¶ 2, Exh. 1.) Plaintiff claims no responses have been served despite counsel sending defense counsel an email in May of 2026. (Id. ¶¶ 3-4.)

On June 30, 2026, Plaintiff filed the instant motion to compel defendants Deutsch's and Galluci's objection-free responses to Plaintiff's first set of requests for production and to impose \$750 in monetary sanctions against defendants and their counsel of record. No opposition was filed.

## ANALYSIS

### A. Compelling Responses to Requests for Production

A demanding party may move to compel responses to requests for production where the responding party fails to provide any responses. (Code Civ. Proc., §§ 2031.300, subd. (b), 2030.290, subd. (b).)

The demanding party must show the requests were properly served, that the time to respond expired, and no response has been served. (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 403-404.) The responding party must respond separately to each demand by agreeing to comply, stating an inability to comply, or objecting to all or part of the demand.

(Code Civ. Proc., § 2031.210, subd. (a).) The responding party must serve responses within 30 days after the requests for production are served or according to an agreed upon deadline extension. (Code

Civ. Proc., § 2031.260, subd. (a)(1)-(3).)

Failing to respond within these time limits waives objections. (Code Civ. Proc., § 2030.290, subd. (a).)

The court cannot determine whether Plaintiff properly served his requests for production on defendants because no Exhibit 1 is attached to the Bravo Declaration. (See Bravo Declaration ¶ 2, Exh. 1.) Although Plaintiff states the requests verbatim in his motion, this is not proof that the requests were actually served on the defendants.

Therefore, the court denies Plaintiff's motion without prejudice.

CONCLUSION and ORDER

Motion is denied without prejudice.

Plaintiff to give notice.

[1] Plaintiff's supporting declaration references documents that are not attached to the supporting declaration.